

**CV-26-002293 NENEF, DANIEL vs NARAYAN, SHAREENA DEVI -
Defendants' Demurrer to the Complaint - SUSTAINED, with leave to
amend.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Judicial Council form PLD-PI-001 used by Plaintiff is for Personal Injury, Property Damage or Wrongful Death claims. The Complaint does not allege any facts supporting any such causes of action. Furthermore, a complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1)). The Complaint is unsupported by any pleadings which meet this requirement or the general California notice pleading requirement. The purported exhibits to the Complaint also do not constitute the required statement of facts. (Thomas v. Regents of Univ. of California, (2023), 97 Cal. App. 5th 587, reh'g denied (Dec. 29, 2023), review denied (Feb. 28, 2024) The Court therefore finds that Plaintiff's Complaint fails to state any facts supporting the selected Motor Vehicle cause of action and is uncertain. (Code of Civ. Proc., § 430.10, subd. (e) and (f)). Accordingly, Defendant's Demurrer to Plaintiff's Complaint is hereby sustained, with leave to amend. Plaintiff shall file a First Amended Complaint within fourteen (14) days of the date of service of this order. The Case Management Conference set for July 6, 2026, is vacated and reset to October 19, 2026, at 8:30am in Department 24 of this Court. The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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CV-26-002293 - NENEF, DANIEL vs NARAYAN, SHAREENA DEVI - Defendants' Demurrer to the Complaint - SUSTAINED, with leave to amend.

The Judicial Council form PLD-PI-001 used by Plaintiff is for Personal Injury, Property Damage or Wrongful Death claims. The Complaint does not allege any facts supporting any such causes of action.

Furthermore, a complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1)). The Complaint is unsupported by any pleadings which meet this requirement or the general California notice pleading requirement. The purported exhibits to the Complaint also do not constitute the required statement of facts. (Thomas v. Regents of Univ. of California, (2023), 97 Cal. App. 5th 587, reh'g denied (Dec. 29, 2023), review denied (Feb. 28, 2024)

The Court therefore finds that Plaintiff's Complaint fails to state any facts supporting the selected Motor Vehicle cause of action and is uncertain. (Code of Civ. Proc., § 430.10, subd. (e) and (f)).

Accordingly, Defendant's Demurrer to Plaintiff's Complaint is hereby sustained, with leave to amend.

Plaintiff shall file a First Amended Complaint within fourteen (14) days of the date of service of this order.

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